

Plaintiff has provided evidence that 141 hours will be spent on the case between counsel Mehrdad Bokhour and counsel Joshua Falakassa. Based on the rates suggested, the lodestar would be \$104,087.50. This results in a multiplier of 1.53. “Multipliers can range from 2 to 4 or even higher.” *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255 (overruled on other grounds in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal. 5th 260). The Court finds the 1.53 multiplier is not “extraordinarily high.” *Laffitte, supra* 1 Cal.5th at 505. The Court finds that the multiplier is appropriate and that attorney’s fees will be awarded in the amount of \$160,000.

The motion is **GRANTED**. Plaintiff submitted a Proposed Order. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, May 3, 2027 at 9:00 a.m. in Department 63** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, that any unclaimed funds were paid to the *cy pres* recipient Legal Services of Northern California, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than April 26, 2027.

MCCRACKEN VS. MIRANDA

CASE NUMBER: 25CV-0207647

Tentative Ruling on Motion to Enforce Settlement Agreement and Enter Judgment Pursuant to CCP § 664.6: Plaintiff Dustin McCracken moves for entry of judgment and enforcement of a written settlement agreement. Defendant Geniveve Miranda does not oppose entry of judgment but does oppose enforcement of the agreement. Defendant’s opposition was untimely. Despite Plaintiff’s objection to the untimely filing, the Court in its discretion will consider the opposition.

Merits. This matter settled pursuant to the parties written settlement agreement executed on October 2, 2025. As part of the written agreement, the parties stipulated to the Court retaining jurisdiction under § 664.6. CCP § 664.6(a) reads:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

CCP § 664.6.

Both parties agree to entry of judgment of the settlement agreement, to sell the property, and do not dispute the terms of the agreement. Upon review of the evidence, it appears that neither party has acted in compliance with the settlement agreement therefore enforcement is currently inappropriate. Plaintiff contends that Defendant breached the agreement when she refused to accept a third-party offer to purchase the property and moved back into the home. Defendant contends that her conduct was authorized by a take-over provision when Plaintiff initially breached the agreement by failing to perform all agreed upon repairs and the repairs that were initiated were not completed in the manner specified by the agreement. Defendant submitted evidence that shows that at least some of the initial repairs were not completed prior to listing. The parties do not dispute that an offer was not received within 14-days following completion of the repairs that were done, and the photos show that subsequent required repairs were also not completed. Pursuant to the agreement, Plaintiff’s failure to complete the repairs in the time agreed triggered a provision which permitted Defendant to hire a licensed contractor and new listing agent. The agreement does not

permit Defendant to move back into the home.

Plaintiff also requests attorney's fees and costs in the amount of \$2,460.00 for bringing the motion. Section 16 of the written settlement agreement provides that "if litigation is initiated based on a claim that there has been a breach of this Agreement, or enforcement of this Agreement is required pursuant to Section 23 of this Agreement, the prevailing party in any such lawsuit shall be entitled to an award of reasonable attorney's fees and costs."

Considering the alleged breach of the agreement by both parties, the Court does not intend to grant the motion for enforcement of the agreement or attorney's fees and costs and defers ruling on the motion at this time. The Court notes a settlement conference is currently set for November 30, 2026. The Court believes that a resolution may be reached and advances the settlement conference to **Monday, August 3, 2026, at 1:30 p.m. in Department 64**. The clerk is directed to vacate the November 30, 2026, settlement conference.

IN RE: SULLIVAN

CASE NUMBER: 26CV-0210344

Tentative Ruling on Petition for Change of Name: Petitioner Brandon Charles Sullivan seeks to change his name to Brandon Charles Mitchell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

TRILLO, ET AL. VS. HINESLEY, ET AL.

CASE NUMBER: 25CV-0209540

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the First Amended Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on June 5, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; (5) the *Hage* Complaint (210078); and (6) a copy of the original *Trillo* Complaint (209540). The request is granted pursuant to Evid. Code §§ 452 and 453.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A